

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CHRISTOPHER GARCIA,

Index No.

Date Index No. Purchased:

Plaintiff,

-against-

Plaintiff designates BRONX
County as the place of trial.

THE CITY OF NEW YORK,
JONATHAN BENITEZ,
JUAN BURGOS, JOHN DOES,

The basis of venue is the
locus of the events in the
Complaint

SUMMONS

Defendants.

-----X
To the above-named Defendant(s):

Please take notice that you are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
June 26, 2024



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Attorney for Christopher Garcia

Defendants' address:

City of New York
c/o Corporation Counsel
100 Church Street
New York, NY 10007

Jonathan Benitez
PBBX Specialized Units
4111 Laconia Avenue
Bronx, NY 10466

Juan Burgos
PBBX Specialized Units
4111 Laconia Avenue
Bronx, NY 10466

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
CHRISTOPHER GARCIA,

Index No.

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Plaintiff,

-against-

VERIFIED COMPLAINTTHE CITY OF NEW YORK,
JONATHAN BENITEZ,
JUAN BURGOS, JOHN DOES,

Attorney Verification

Defendants.

Basis of venue is locus of
events in the Complaint-----X
Plaintiff Christopher Garcia, by his attorney, Cyrus Joubin, complaining of the

Defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This action arises from various civil rights violations against Christopher Garcia ("Plaintiff" or "Garcia") by New York City police officers. Plaintiff asserts constitutional claims pursuant to 42 U.S.C. § 1983 ("Section 1983") against the individual defendants for false arrest, unlawful seizure, unlawful search, and failure to intervene. Additionally, Plaintiff asserts analogous claims under New York State and New York City Law against the individual defendants, and against the City of New York under the doctrine of *respondeat superior*. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney's fees pursuant to applicable state, municipal, and federal civil rights law.

VENUE AND JURISDICTION

2. Venue is proper in Bronx County Supreme Court pursuant to CPLR Section

503 because the acts complained of occurred in Bronx County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York.

3. Plaintiff has complied with N.Y. General Municipal Law Section 50-E by serving a timely notice of claim upon the defendants. More than 30 days have elapsed since said claim (2023PI031104) was presented and the claim has not been satisfied. This action has been commenced within one year and ninety days after the occurrence of the event upon which the claims are based.

JURY DEMAND

4. Plaintiff respectfully demands a trial by jury on each and every one of his claims as pled herein, pursuant to Fed. R. Civ. P. 38(b).

PARTIES

5. At all times relevant herein, Plaintiff was a resident of Bronx, New York.

6. The individual defendants, Police Officers Jonathan Benitez (“PO Benitez”), Sergeant Juan Burgos (“Sgt. Burgos”), and John Does, are and were at all times relevant herein officers, employees and agents of the New York City Police Department (“NYPD”).

7. Each individual defendant is sued in his individual and official capacity. At all times mentioned herein, each individual defendant acted under the color of state law, in the capacity of an officer, employee, and agent of defendant City of New York (“Defendant City”).

8. Defendant City is a municipality created and authorized under the laws of New York State. It is authorized by law to maintain, direct, and to supervise the NYPD, which acts as its law enforcement agent and for which it is ultimately responsible.

STATEMENT OF FACTS

9. On July 8, 2023, around 7:30 p.m., Plaintiff was driving a Honda moped that he had recently purchased. His girlfriend was riding in the vehicle with him.

10. As Plaintiff drove near 1075 Webster Avenue in the Bronx, police officers from the NYPD 41st and / or 42nd Precinct – including Defendants Officer Jonathan Benitez and Sergeant Juan Burgos, and John Does – stopped Plaintiff and placed him under arrest (Arrest No. B23629256), wrongly asserting that his vehicle was stolen.

11. Plaintiff and his girlfriend tried explaining how Plaintiff had lawfully purchased the moped and had documents (such as the bill of sale) with them to prove it – but the defendant officers disregarded their innocent explanations and proof of innocence.

12. The defendant officers seized Plaintiff's moped.

13. The defendant officers took Plaintiff and his girlfriend (also under arrest) to the police precinct.

14. At the precinct, the defendant officers took Plaintiff to an interrogation room where they questioned him about things he had no knowledge of – guns and criminal activity that were completely unrelated to the asserted basis for his stop and arrest – which illuminated the true reason for Plaintiff's arrest.

15. The defendant officers falsely accused Plaintiff of grand larceny and criminal possession of a stolen vehicle, and submitted these false charges to the Bronx District Attorney's Office.

16. The defendant officers also fabricated the basis for the stop of Plaintiff's vehicle, falsely asserting that Plaintiff ran red lights and endangered pedestrians.

17. Around 12:30 a.m. on July 9, 2023, Plaintiff was issued a Desk Appearance Ticket (DAT Serial No. 044-06663), which ordered him to appear in Bronx Criminal Court on July 28, 2023.

18. The defendant officers retained Plaintiff's moped, vouchering it as "Arrest Evidence" under Invoice No. 2001251708.

19. The defendant officers also searched Plaintiff's backpack, without a warrant or Plaintiff's consent, to search for contraband.

20. Plaintiff possessed absolutely nothing unlawful.

21. The defendants unlawfully seized Plaintiff's keys, including his house keys, and never returned them.

22. On July 28, 2023, Mr. Garcia went to Bronx Criminal Court and learned that the Bronx District Attorney's office declined to bring any criminal charges against him.

23. As a direct and proximate cause of the said acts of the Defendants, Plaintiff suffered the following injuries and damages:

- a. Violation of his constitutional rights under the Fourth Amendment to the United States Constitution;
- b. Loss of liberty;
- c. Emotional trauma, distress, degradation, and suffering.

SECTION 1983 CLAIMS**FIRST CLAIM****False Arrest Under Section 1983**

24. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

25. By the actions described, the Defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from false arrest.

26. As detailed above, the individual defendants intentionally arrested and detained Plaintiff without probable cause, without a warrant, without privilege or consent.

27. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

SECOND CLAIM**Unlawful Seizure Under Section 1983**

28. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

29. By the actions described, the individual defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from unlawful seizures of his property – in this case, his vehicle.

30. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM**Unlawful Search Under Section 1983**

31. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

32. By the actions described above, Defendants deprived Plaintiff of his Fourth Amendment right to be secure in his person against unreasonable searches and seizures, specifically his right to be free from unlawful searches.

33. As detailed above, the individual defendants intentionally and unlawfully searched Plaintiff's backpack, where he had a reasonable expectation of privacy, without a warrant or other lawful basis.

34. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

FOURTH CLAIM**Failure to Intervene Under Section 1983**

35. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

36. Each and every individual defendant had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights by other law enforcement officers.

37. The individual defendants failed to intervene on Plaintiff's behalf to prevent, end, or truthfully report the violations of his constitutional rights despite knowing about such violations and having had a realistic opportunity to do so.

38. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

PENDENT STATE CLAIMS

FIRST CLAIM

False Imprisonment Under N.Y. State Law

39. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

40. The individual defendants intentionally arrested and detained Plaintiff without probable cause, without a warrant, and without privilege or consent.

41. As a direct and proximate result, Plaintiff sustained the damages and injuries hereinbefore alleged.

SECOND CLAIM

Right of Security Against Unreasonable Search and Seizure and Excessive Force Under New York City Administrative Code

42. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

43. As detailed above, the individual defendants intentionally violated Plaintiff's right to be secure against unreasonable seizures and malicious prosecution in violation of New York City Administrative Code Title 8, Chapter 8: The Right of Security Against Unreasonable Search and Seizure and Against Excessive Force Regardless of Whether Such Force Is Used In Connection with a Search or Seizure. § 8-803 Civil action for deprivation of rights.

44. As a direct and proximate result, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM**Malicious Abuse of Process**

45. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

46. As detailed above, the individual defendants arrested, detained, and submitted false accusations against Plaintiff not because they were justified to do so, but in order to interrogate Plaintiff on collateral matters (guns and criminal activity), to go on a fishing expedition with the hope Plaintiff could provide them some valuable information, and to seize his vehicle.

47. As a direct and proximate result, Plaintiff sustained the damages and injuries hereinbefore alleged.

FOURTH CLAIM**Negligent Hiring/Training/Retention of Employment Services Under N.Y. State Law
(Against Defendant City of New York)**

48. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

49. Defendant City owed a duty of care to Plaintiff to prevent the violations and abuse sustained by Plaintiff.

50. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

51. Defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants could potentially cause harm.

52. Defendant City's negligence in hiring, screening, training, disciplining and retaining the individual defendants proximately caused Plaintiff's injuries.

53. As a result of its negligent conduct, Defendant City has directly and proximately caused the damages and injuries hereinbefore alleged.

FIFTH CLAIM

Respondeat Superior Under N.Y. State Law

54. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

55. Defendant City is the employer of the individual defendants.

56. Under the doctrine of *respondeat superior*, the Defendant City is responsible for the wrongdoing of its employees acting within the scope of their employment.

57. As a direct and proximate result of the acts of the individual defendants detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief jointly and severally against the Defendants:

- a. An order awarding compensatory damages for Plaintiff Christopher Garcia in an amount to be determined at trial;
- b. An order awarding punitive damages in an amount to be determined at trial;
- c. A court order, pursuant to 42 U.S.C. § 1988, that Plaintiff is entitled to reasonable attorney's fees, costs and disbursements; and

d. Such other and further relief as this Court may deem appropriate.

DATED: June 26, 2024
New York, New York



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Attorney for Christopher Garcia

ATTORNEY'S VERIFICATION

I, Cyrus Joubin, the Plaintiff's attorney in this matter, hereby affirm this 26th day of June, 2024, under penalties of perjury, that the following is true: I am an attorney admitted to practice in the Courts of New York State, and I have read the annexed Complaint and know the contents thereof, and the same is true to my knowledge, except as to matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason I (rather than Plaintiff) make this verification is because Plaintiff does not reside in the county where the undersigned attorney has his office.



Cyrus Joubin